



DECISION

Complaint No. : POS/8570/KE-1171/25

Name and Address of the Complainant : Mr. Muhammad Nawaz, r/o Flat No. M-2, Happy Heights, New Jail Chowrangi, Karachi.

Name of the Agency Complained against : 1. Sindh Higher Education Commission
2. Finance Department

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED UNJUST REJECTION OF CLAIM FOR REIMBURSEMENT OF MEDICAL EXPENDITURE IN RESPECT OF WIFE OF THE COMPLAINANT.**

THE COMPLAINT

Mr. Muhammad Nawaz, serving as Assistant Director (QA) in Sindh Higher Education Commission, filed a complaint dated 15.09.2025, stating that his medical reimbursement claim in respect of his wife was denied by Sindh HEC on the advice of the Finance Department that his wife was not dependent on the complainant in terms of Rule 2(c) of the Sindh Civil Servants (Medical Attendant) Rules, 1993. He stated that his wife, Mrs. Shahnaila, was suffering from advanced chronic kidney disease and was undergoing hemodialysis at SIUT. He contended that due to her critical medical condition, she was unable to pursue her medical claim through her parent department. The complainant contended that reliance placed by the Finance Department on Rule 2(c) of the Sindh Civil Servants (Medical Attendant) Rules, 1993 was misplaced, and that the matter ought to be considered in light of the Federal Services Medical Attendance Rules, 1990, which allow medical reimbursement where both spouses are government servants, subject to certain conditions. He, therefore, sought intervention of this office in the matter.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, a report was called from the Agency. In response, the Assistant Director (Admin), SHEC reported that the complainant's wife is herself a government servant serving under the School Education & Literacy Department and is entitled to medical facilities in her own right. It was stated that under Rule 2(c) of the Sindh Civil Servants (Medical Attendant) Rules, 1993, medical reimbursement is admissible only in respect of family members who are wholly dependent on the civil servant. Since the spouse of the complainant is financially independent, the claim does not fall within the scope of admissible reimbursement. It was further reported that guidance was sought from the Finance Department, Government of Sindh, which consistently opined that the claim is not admissible under the existing rules. The complainant's subsequent appeal was also considered; however, the Finance Department reiterated its earlier advice. The agency submitted that it acted strictly in accordance with the applicable rules and the advice of the Finance Department, and that no maladministration has occurred.

Contd.....

FINDINGS

3. The matter has been examined in the light of the record and the relevant rules and it has been noted that:

- a) The issue for determination is whether the complainant is legally entitled to claim medical reimbursement in respect of his wife under the Sindh Civil Servants (Medical Attendant) Rules, 1993.
- b) Rule 2(c) of the Sindh Civil Servants (Medical Attendant) Rules, 1993 defines "family" to include only those members who are wholly dependent upon the civil servant. The rule further clarifies that a financially independent family member cannot be treated as a dependent for the purposes of medical reimbursement.
- c) It is an admitted position that the complainant's wife is a regular government servant and is entitled to medical facilities from her parent department. Therefore, she does not fall within the definition of "wholly dependent" as envisaged under the applicable Sindh Rules.
- d) The reliance placed by the complainant on the Federal Services Medical Attendance Rules, 1990 is misconceived, as the said rules are applicable to Federal Government servants and have not been adopted by the Government of Sindh.
- e) The record reflects that Sindh Higher Education Commission sought advice from the Finance Department on more than one occasion and acted in conformity with the advice so tendered. No evidence of arbitrariness, mala fide, or misapplication of law has been shown.

DECISION

4. In view of the foregoing, since no maladministration could be established on the part of Sindh Higher Education Commission or the Finance Department, Government of Sindh, the complaint is, therefore, disposed of as rejected.

5. This also disposes of complaint bearing No. POS/6753/KE-1083/25 also filed by the same complainant, being identical in nature.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 26th. 03 , 2026